Case 1 **HCH3063/26**
SCRAIVEN NYAMUCHENGWA
versus
LARYSCOPE HEALTH CARE (PVT)LTD
and
MESSENGER OF COURT MUREWA

Case 2 **HCH3064/26**
SCRAIVEN NYAMUCHENGWA
versus
LARRYSCOPE HEALTH CARE (PVT) LTD
and
RAY AND BRIAN ENTERPRISES (PVT) LTD
and
PROVINCIAL MINING DIRECTOR MASHONALAND EAST PROVINCE
and
MINISTER OF MINES AND MINING DEVELOPMENT

HIGH COURT OF ZIMBABWE
MUSITHU J
HARARE, 02 July & 10 July 2026

Ruling on costs of suit-Urgent chamber applications for leave to execute pending appeal

T. Magwaliba for the applicant in both Case 1 and Case 2
G. Madzoka for the 1st respondent in Case 1
R.G. Zhuwarara for the 1st respondent in Case 2
C. Warara for the second respondent in Case 2
F. Chimunoko for the 3rd and 4th respondent in Case 2

MUSITHU J:

[1] This judgment is concerned with costs of suit in both Case 1 and Case 2. The two matters are related. Both matters were urgent chamber applications for leave to execute judgments of this court pending appeals lodged against those judgments at the Supreme Court. The applicant and the first respondent are the same in both matters. In Case 1, the applicant sought to execute the judgment in HCH136/25 handed down as HH399/26. The court granted a spoliation order in favour of the applicant against the first respondent herein on 2 June 2026. That judgment was appealed to the Supreme Court under SC 548/26 on 10 June 2026.

On 23 June 2026, the applicant filed the urgent chamber application for leave to execute pending the determination of that appeal under SC 548/26.

[2] Case 2 was an application for leave to execute the judgment handed down under HCH 794/25. That matter was heard together with two other matters involving the same parties following their consolidation by an order of this court. A composite judgment was handed down in that matter under HH 398/26 on 2 June 2026. The applicants therein were the applicant and the second respondent herein. The first respondent herein was the first respondent in that matter. The third and fourth respondents herein were the second and third respondents in that matter. The application was one for a *declaratur* in which the applicants sought an order declaring that the first respondent did not have mining rights to carry out mining operations in certain mining claims in which they both had an interest.

[3] Following the handing down of the judgment, the first respondent noted an appeal to the Supreme Court under SC 560/26 on 11 June 2026. It was the filing of the notice of appeal that triggered the filing of the urgent chamber application for leave to execute pending appeal on 23 June 2026.

[4] The two urgent chamber applications were set down for hearing on 2 July 2026. On the eve of the hearing on the same day, the first respondent in **Case 1** filed an opposing affidavit in which it asserted that the application for leave to execute had become moot and ought to be removed from the roll. This was because the appeal pending before the Supreme Court under SC 548/26 had been deemed abandoned and dismissed on 26 June 2026. The reason for the dismissal of the appeal was because of the first respondent's failure to serve the notice of appeal on the registrar of the High Court in terms of r 44(2) of the Supreme Court Rules, 2025.

[5] In **Case 2**, the first respondent's legal practitioners filed a letter with the registrar on the eve of the hearing on 2 July 2026, advising that the appeal under SC 560/26 had been deemed abandoned and dismissed on 29 June 2026. The reason for the dismissal was again the first respondent's failure to serve the registrar with the notice of appeal in terms of r 44(2) of the Supreme Court Rules.

[6] At the hearing of the applications, it became common cause that the two urgent applications had been overtaken by events. The two appeals which underpinned them had fallen off the radar rendering the applications academic. The applications had to be disposed

of one way or the other. The parties disagreed on the question of costs. They were invited to make submissions on the issue.

The submissions on costs

[7] *Mr Magwaliba* appearing for the applicant in both applications submitted that the party at fault in both matters ought to bear the costs of suit. The law on costs was premised on fault. The party who improperly brought a claim before the courts had to bear the wasted costs. It was further submitted that the applicant's cause of action crystalised when the appeals were filed. When the two applications for leave to execute were filed, there were valid appeals pending at the Supreme Court. The appeals were dismissed because of the first respondent's fault in not serving the appeals on the registrar as required by the rules.

[8] Mr *Magwaliba* further submitted that the first respondent could not seek to benefit from its own fault which caused the premature dismissal of the appeals. Having been responsible for the dismissal of the appeals, the first respondent ought to pay the wasted costs.

[9] In response, Mr *Zhuwarara* for the first respondent in **Case 2** submitted that the applicant's petition could not succeed because of mootness. Costs were only awarded to a successful party, and the applicant could not point to any success since its cause had been overtaken by events. No improper conduct could be attributed to the first respondent. The dismissal of the appeals was an administrative decision. It was only proper that the matters be struck off the roll with each party bearing its own costs of suit.

[10] Mr *Madzoka* appearing for the first respondent in **Case 1** submitted that all the parties herein were linked to the Supreme Court matters in the IECMS. The applications before the court were set down for hearing after the appeals had been dismissed, with all the parties having prior knowledge of the dismissals. Counsel further submitted that the applicant could not insist on costs when it was not a successful party.

[11] No submissions were made on behalf of the second, third and fourth respondents with their counsels opting to abide by the decision of the court.

The analysis

[12] Costs of suit are an integral component of the litigation journey as they help dictate the economic viability of a lawsuit. Although costs are generally regarded as incidental to the main dispute, they serve an important function of compensating successful litigants for the expenses incurred in enforcing or defending their rights while also promoting fairness and

discouraging frivolous litigation. In deciding on the question of costs, courts exercise their judicial discretion taking into account the particular facts and circumstances of each case, the conduct of the parties, the nature of the proceedings, and the interests of justice.

[13] The approach to be followed in determining the issue of costs was discussed in *Nhari* v *Public Service Commission* 1998 (1) ZLR 574 (HC) at p583. The court quoted the following excerpt from *Fripp* v *Gibbon* & Co 1913 AD 353 as follows:

> "Questions of costs are always important and sometimes difficult and complex to determine, and in leaving the magistrate discretion, the law contemplates that he should take into consideration the circumstances of each case, the conduct of the parties and any other circumstances…. and if he does this and brings his judgment to bear upon the matter and does not do so capriciously or upon a wrong principle, I know of no right on the part of a court of a court of appeal to interfere with the honest exercise of his discretion".

[14] In *Kruger Bros and Wasserman* v *Ruskin* 1918 AD 63 at 69, the court dealt with the issue of costs as follows:

> "The rule of our law is that all costs unless expressly enacted are in the discretion of the judge. His discretion must be judicially exercised…….".

[15] Although the general rule is that costs follow the event, meaning that the unsuccessful party is ordinarily ordered to pay the successful party's costs, this principle is not cast in stone. The court must also consider the conduct of the parties in exercising its discretion. A successful party may be denied costs or even be penalised with an order of costs if the court adjudges its conduct to be detestable, unacceptable and contemptuous.

[16] It is common cause that both applications became moot following the dismissal of the pending appeals. The dismissals occurred before the two applications were set down for hearing. Both parties were aware of the dismissal of the appeals having been linked to the matters in the IECMS. Both parties were also aware that the two applications would be set down for hearing at any time, having been filed under the urgency tag. The parties waited until the date of the hearing to inform the court that the matters had been overtaken by events. None of the parties bothered to advise the court in good time that the applications before it had become moot following the dismissal of the appeals.

[17] In assessing the conduct of the parties for purposes of determining an appropriate order of costs, the court must do so with reference to the conduct of all the parties before it. As

already stated, the mere fact that a party has successfully prosecuted its claim does not automatically guarantee an award of costs in its favour. In the present matter, both parties owed a duty to inform this court of the dismissal of the appeals before the Supreme Court. I say so because both parties had an interest in the two matters pending before the Supreme Court. The applicant had an interest in the two appeals because his applications were tied to those two appeals. The dismissal of the appeals affected the applicant's applications before this court.

[18] Similarly, the first respondent had an interest in the pending appeals as the *dominus litis*. The first respondent was also aware that the two appeals had a bearing on the two urgent applications pending before the court. It was supposed to communicate the fate of those appeals once it became aware of their dismissal.

[19] Having regard to the parties' conduct herein, the court is of the view that the parties were clearly aware of their duty to bring this court up to speed with developments at the Supreme Court immediately after the appeals were dismissed. The reason why they did not communicate, waiting until the date of the hearing to do so, was probably because they intended to ambush each other by waving the dismissal of the appeals as a preliminary point. The parties' counsels forgot their ethical responsibilities to the court, that is to communicate any change in the status of a matter which would directly impact the prosecution of that matter before the court. The two applications would have been handled differently. The court wasted time preparing for matters that had been overtaken by events, when the parties could have been more courteous by informing the court of the change of status in those matters.

[20] The court determines that the conduct of both parties herein was inexcusable. Both parties were clearly to blame and the question of costs of suit should not have arisen at all. The duty to inform the court of material developments, however, did not rest on the applicant alone. Litigation is conducted on the premise that parties owe a duty of candour to the court. The court is the key player in dispensing justice between parties. It is to the court that parties turn to for the resolution of their disputes. Any change in the status of a matter that is already pending before the court, or a judge must be communicated to the court without delay.

[21] Where a material event occurs which renders proceedings academic or affects the issues for determination, both parties are expected to disclose that fact. Both parties, having become aware that the appeals had been dismissed, were under an ethical obligation to notify the

court of such a development. Such disclosure promotes the proper administration of justice, prevents the unnecessary expenditure of judicial resources and avoids the need for parties to incur costs in proceedings that no longer require determination.

[22] Both parties failed to discharge their duty to keep the court abreast with developments affecting the proceedings before the court. It would therefore be unjust to burden one party with costs arising from a situation that both materially contributed to. The interests of justice would best be served by directing that each party bears its own costs of suit.

Resultantly it is ordered that:

1. The applications for leave to execute pending appeal, that is Case 1 HCH 3063/26 and Case 2 HCH 3064/26 are hereby struck off the roll, having become moot following the dismissal of the appeals that were pending at the Supreme Court.
2. Each party shall bear its own costs of suit.

MUSITHU J…….

Wellington Attorneys, legal practitioners for the applicant in Case 1 and 2
Kadzere, Hungwe & Mandevere, legal practitioners for the 1st respondent in Case 1 and 2
Warara & Associates, legal practitioners for the 2nd respondent in Case 2
Civil Division of the Attorney General's Office, legal practitioners for the 3rd and 4th respondents in Case 2